

is given to the Courts of Queen's Bench and the County Courts in Upper Canada.

Among the numerous questions arising in a Court of Equity was one of frequent occurrence, as to which the law is materially altered by a recent Act. It was the acknowledged rule in Equity, that a bona fide purchaser of real estate for value, purchasing and paying his money without notice of any previous Conveyance, could defend his title against a prior purchaser. And under the Registry Laws of this Province, as they formerly stood, such a title could be so defended, although the holder of it had not registered his deeds. Nor was the mere fact of registration necessarily notice to a purchaser, unless he searched. But, if he searched the Registry Books, he was bound by notice of their contents. And the same with regard to Judgments. It may here be noticed with regard to this subject of notice, that a purchaser should always make himself acquainted with all circumstances affecting the possession of the land. If a third party, and not the vendor, is in possession, the purchaser should enquire of the third party by what title he holds, for he will be bound by his title if he have one. And it was a rule with respect to the plea of "bona fide purchaser for valuable consideration without notice," that it must contain an averment that the vendor was at the time of the purchase in possession. And, although pleas are now abolished, if under the present practice such a defence is set up by answer, this averment should still be made.

The Act of 1850 alters the law as to all conveyances executed after the 1st of January, 1851. The following sections it has been thought advisable to give in full:—

2. And be it enacted, That a judgment to be entered up against any person in any Court of Record in Upper Canada *after the first day of January, one thousand eight hundred and fifty-one*, shall operate as a charge, so soon as a certificate of such judgment shall have been duly registered, upon all lands, tenements, and hereditaments situate within the county where such certificate shall have been registered as aforesaid, of or to which such person shall at the time of registering such judg-

Change in the law with regard to notice to purchasers, of outstanding encumbrances.

13 and 14 Vic.
Ch. 63.
Registration
Notice.

13 and 14 Vic.
Ch. 63.
How registered
judgments
shall affect
lands, &c.